

11. 9:00 AM CASE NUMBER: C25-00108
CASE NAME: LOUIS MILNE VS. THOMAS EDGINGTON, III
*HEARING ON MOTION IN RE: FOR NEW TRIAL
FILED BY: MILNE, LOUIS J.
TENTATIVE RULING:

The Motion of Plaintiffs Louis J. Milne and Cathy J. Fitzpatrick for a New Trial is **denied**.

Background

Plaintiffs Louis J. Milne and Cathy J. Fitzpatrick filed this action on January 9, 2025, asserting wage and hour claims against Defendant Thomas Scott Edgington, III arising from Milne's employment for Defendant.

Defendant Edgington was personally served with the summons and complaint on January 15, 2025, by a process server, and then again on January 24, 2025, by the Contra Costa County Sheriff. When no responsive pleading was filed within 30 days of the second service, Plaintiffs filed a request for entry of default and default was entered on February 25, 2025.

On April 14, 2025, Defendant filed a motion for relief from default under CCP section 473(b). While Defendant's motion was pending, on April 23, 2025, Plaintiffs obtained a default judgment. Defendant later withdrew the motion after Plaintiffs objected on notice grounds, intending to refile it properly.

Defendant filed his second motion on June 9, 2025, again requesting relief under section 473(b) based on mistake, inadvertence, or excusable neglect. Defendant stated he misunderstood the response deadline, believing the case management conference date was the date by which he had to respond. Defendant also stated he was facing personal and family difficulties at the time. Defendant noted that Plaintiffs had requested entry of default on the first day allowed, without warning, even though they had his contact information. Defendant also argued that Plaintiff Fitzpatrick, a recent Berkeley Law graduate, should have understood the professional expectation to provide specific notice before taking a party's default.

The Court heard Defendant's motion to set aside default and default judgment on November 4, 2025, and issued an order granting the motion on January 8, 2026. Plaintiffs now move for a new trial. Plaintiffs contend the Court's order resulted from: "'abuse of discretion' (CCP § 657(1)), insufficiency of the evidence or the decision is 'against law' (CCP § 657(6)), and '[e]rror of law' (CCP § 657(7))" because "the court's holding on excusable neglect is based on a misunderstanding of the evidence; the court's reliance on a fairness-based duty to warn an unrepresented Defendant is undermined by binding appellate authority (which holds that no such duty exists); and the court's criticism of Plaintiffs for purportedly acting with "quiet speed" is inconsistent with mandatory rules promulgated by the Judicial Council (which require that defaults be taken quickly)." Plaintiffs ask the court to grant a new trial or for reconsideration of Judge Devine's order.

Standard

Under Code of Civil Procedure section 657, a motion for new trial may be granted if there is any:

[¶] 1. Irregularity in the proceedings of the court, jury, or adverse party, or any order of the court or abuse of discretion by which either party was prevented from having a fair trial. [¶] 2. Misconduct of the jury; and whenever any one or more of the jurors have been induced to assent to any general or special verdict, or to a finding on any question submitted to them by the court, by a resort to the determination of chance, such misconduct may be proved by the affidavit of any one of the jurors. [¶] 3. Accident or surprise, which ordinary prudence could not have guarded against. [¶] 4. Newly discovered evidence, material for the party making the application, which he could not, with reasonable diligence, have discovered and produced at the trial. [¶] 5. Excessive or inadequate damages. [¶] 6. Insufficiency of the evidence to justify the verdict or other decision, or the verdict or other decision is against law. [¶] 7. Error in law, occurring at the trial and excepted to by the party making the application.

(Code Civ. Proc., § 657.)

Irregularity in the Proceedings Due the Lack of a Verbatim Transcript

Plaintiffs first argue there has been an irregularity in the proceedings because they requested a court reporter at the hearing on defendant's motion to set aside but none was provided.

The Local Rules state that the Court does not provide official court reporter services in proceedings where such services are not legally mandated, such as civil law and motion matters. In those cases, counsel must arrange for a private court reporter to be present. But for those cases in which a current fee waiver is on file with the Court, parties may request the services of a court reporter, and the Court will waive the fees. (See Local Rule 2.53.)

At the November 4, 2025 hearing, Plaintiffs appeared at the hearing on Defendant's motion via Zoom. Plaintiff Fitzpatrick, who has a fee waiver on file, had requested a court reporter for the hearing. One was not provided. Ms. Fitzpatrick joined the hearing late and did not raise the issue of a reporter. Plaintiffs claim they were not aware no reporter had been provided, and there were no outward signs that this was the case because they appeared via Zoom.

Plaintiffs argue the trial court's failure to provide a court reporter for the hearing violated their right to meaningful appellate review. Plaintiffs claim this was prejudicial because Defendant's counsel, as well as the Court, made certain statements at the hearing that help show the Court abused its discretion in granting relief, and which Plaintiffs had planned to use to challenge the order on appeal. Plaintiffs argue that even if the Court ultimately disagrees with their anticipated appellate arguments, they were entitled to preserve them, and that an appeal without a transcript would not necessarily have been futile, citing *Gardner v. Superior Court* (1986) 182 Cal.App.3d 335, 339 for the proposition that "orders granting relief under CCP § 473(b) are occasionally reversed."

On the issue of court reporters, the Supreme Court held in *Jameson v. Desta* (2018) 5 Cal.5th 594 that

for litigants who qualify for and have obtained a fee waiver, an “official court reporter, or other valid means to create an official verbatim record for purposes of appeal, must generally be made available to in forma pauperis litigants upon request.” (*Jameson*, 5 Cal.5th at p. 599.) The Supreme Court recognized the importance of a reporter's transcript to an indigent litigant's ability to meaningfully exercise his or her right to seek appellate review. (*Jameson*, at pp. 608–610.) The Supreme Court stated that “the absence of a court reporter at trial court proceedings and the resulting lack of a verbatim record of such proceedings will frequently be fatal to a litigant's ability to have his or her claims of trial court error resolved on the merits by an appellate court.” (*Id.* at p. 608.)

It appears Ms. Fitzgerald joined the hearing late and neglected to confirm the presence of the court reporter. Plaintiffs fail to demonstrate that the matter was raised at the time or that any objection to proceeding was made. Plaintiffs’ motion for new trial for irregularity in the proceedings is denied because the court is not persuaded that they were prevented from having a fair trial. The hearing on the motion to set aside proceeded in the ordinary course. Both sides were heard on the merits of the Court’s tentative ruling, and the Court issued an order setting forth its reasoning on the issues presented in the papers. To the extent Plaintiffs argue they were prejudiced because the absence of a transcript prevents them from establishing what was purportedly said at the hearing, the Court cannot retroactively create a record of that colloquy. Plaintiffs assert that “[a]t the very least, Plaintiffs are entitled to vacatur of the irregularly-made order, and a new hearing of Defendant’s motion with a court reporter present, and with the opportunity to provide the court with supplemental briefing on Defendant’s motion in advance of the new hearing.” (See Fitzgerald Decl., ¶ 15.) Plaintiffs do not persuade the Court that a new hearing with supplemental briefing before a different judge is needed to provide them a fair hearing on defendant’s motion, and the court declines to award such relief. Nor does the Court conclude that a transcript of the oral argument is necessary to permit meaningful review of the Court’s consideration and ruling on this law and motion matter.

Asserted Legal and Factual Error

Plaintiffs claim the evidence showed that Defendant neglected to read the summons and other papers carefully, amounting to inexcusable neglect, and the Court got that issue wrong. They also argue the Court misapplied the law when it considered their failure to provide Defendant with specific notice of an intent to take his default because a duty to warn applies only to represented parties. Plaintiffs also argue the Court was mistaken when it stated the parties had been in ongoing communication before the default.

These matters do not amount to new or different facts or circumstances that justify reconsideration of Judge Devine’s order, or a new hearing on the motion to set aside default. Moreover, Plaintiffs have not shown that the circumstances set forth in Code of Civil Procedure section 657 exist.

Disposition

Based on the foregoing, the motion is denied.

12. 9:00 AM CASE NUMBER: C25-01397
CASE NAME: ROBERT RODRIGUEZ VS. SIMONA ZAKHEIM
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: ZAKHEIM, SIMONA YANA S.

TENTATIVE RULING:

This matter is continued by the Court to March 23, 2026. The demurrer filed by Elisabeth Masoudi is advanced from May 11 to March 23, 2026. Opposition and reply are due per code.

Defendants Simona Zakheim and Hyden Zakheim shall give notice of the new hearing dates to all parties.

13. 9:00 AM CASE NUMBER: C25-01595
CASE NAME: PRODIGY MANAGEMENT, LLC VS. KHRISTIAN BUISON
***HEARING ON MOTION IN RE: APPLICATION FOR WRIT OF POSSESSION AND HEARING RE:**
KHRISTIAN JOY BUISON APPLICATION
FILED BY:

TENTATIVE RULING:

Plaintiff Prodigy Management, LLC ("Plaintiff") filed an Application for Order for Issuance of Writ of Attachment after Hearing on September 12, 2025 (the "Application for Writ of Attachment"). The Application for Writ of Attachment was initially set for hearing on January 26, 2026. The application was subsequently continued to February 23, 2026. No opposition has been filed.

Background

Plaintiff filed its Complaint on June 5, 2025 alleging that Khristain Joy Buison and Buison Enterprise Inc. failed to pay certain amounts due and owing in relation to the purchase of a pizza restaurant. The Complaint includes claims for breach of contract, common counts and fraud.

Analysis

First, the application is procedurally defective. The Application for Writ of Attachment paper (AT-105) was accompanied by a "NOTICE OF APPLICATION FOR WRIT OF POSSESSION AND HEARING" (CD-110). The property sought to be attached is certain real property located in Brentwood, California. The proper notice for an application for a writ of attachment must given using form AT-115. For this reason alone, the Court would deny the application.

Second, no supporting declaration other than the Application for Writ of Attachment supports the application. The Application for Writ of Attachment is signed under penalty of perjury and contains some information about the nature of the alleged obligation and the damages figures, including a short attachment ("ATTACHMENT TO AT-105 SECTION 7"). However, this is woefully deficient. There is very little information given regarding the breach of the subject contract and calculation of the damages. No exhibits are attached, such as the described promissory note. Most importantly, however, what is stated is only attested to by the attorney. There is no foundation that the attorney has personal knowledge of the underlying transaction and breach.

Disposition

The Court finds and orders as follows: